

IN THE COUNTY COURT OF THE SIXTH JUDICIAL CIRCUIT,
IN AND FOR PASCO COUNTY, FLORIDA

SWEET LIVING, INC.,
Plaintiff,
vs.

Case No.: 26-CC-001256
Division: 6-B

BRANDI RODGERS,
Defendant.

**PLAINTIFF'S MOTION FOR JUDICIAL DEFAULT AND MOTION FOR FINAL
JUDGMENT OF POSSESSION**

Plaintiff, by and through their undersigned counsel, moves for entry of a judicial default and motion for final judgment of possession, and in support thereof states as follows:

1. On February 18, 2026, Plaintiff filed its Complaint for Eviction alleging non-payment of rent against the Defendant.
2. On March 10, 2026, Defendant filed a pro se answer. Defendant's answer contains random notes running along three sides of a copy of the Plaintiff's Complaint, a general denial, and email communications, and a third-party demand for a refund of the purchase price of the subject Mobile Home. A copy of the pro se answer is attached hereto as Exhibit A.
3. The Defendant's pro se Answer alleges that the Defendant purchased the subject Mobile Home from Sally Potes on or about December 6, 2025, for \$18,000.00. On December 17, 2025, Defendant learned that she was not approved for residency in the park.
4. Defendant states in the demand letter that she sent to Sally Potes that, "The Florida title you provided reflects a sale price of \$2,000.00..." (*See page 11 of the Answer, Paragraph 4.*) The Defendant references the bill of sale and acknowledges that she purchased the mobile home from Sally Yates. On page 8 of the Answer, Defendant states, "Sally texted and asked me what I wanted to do and I texted to meet with her for a refund she can have the keys, the registration, and the and the title back as I am not approved...". (*See page 8 of the Answer.*)
5. Despite the Defendant's repeated references to purchasing the mobile home from Sally Potes and having title to the mobile home, Defendant also asserts she doesn't own the mobile home.
6. F.S. §319.22 provides, "a person acquiring a motor vehicle or mobile home from the owner thereof...shall not acquire marketable title to the motor vehicle or mobile home until he or

she has had issued to him or her a certificate of title". Therefore, under Florida law, the Defendant has marketable title to the mobile home if she has the Certificate of Title and a Bill of Sale.

7. F.S. §723.063(2) provides, "the failure of the mobile home owner to pay the rent, or portion thereof, into the registry of the court as required herein constitutes an absolute waiver of the mobile home owner's defenses other than payment, and the park owner is entitled to an immediate default".

8. Defendant failed to deposit the past rent due and the ongoing rent due into the registry of the court as required by F.S. §723.063. As a result, Plaintiff is entitled to an immediate judicial default and default final judgment of possession.

WHEREFORE, Plaintiff requests the entry of a judicial default against the Defendant, and a Final Judgment of Possession, with a Writ of Possession to be issued upon the signing of the Final Judgment.

Dated: March 12, 2025.

The Law Office of Keith Will Wynne, Esq.

By:/s/ Keith William Wynne, Esq.

Keith William Wynne, Esq.

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Attorney for Plaintiff

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on March 12, 2026, a copy of the foregoing document was sent via U.S. Mail to:

Brandi Rodgers
13721 94th Ave.
Seminole, FL 33776
Defendant

/s/ Keith William Wynne, Esq.
Keith William Wynne, Esq.
Florida Bar No. 898201
Attorney for Plaintiff

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